

		Defendant argues that Mr. Brown is a necessary percipient witness because he personally signed the lien against Defendant’s property and he is the only individual who can testify as to his authority to record the lien, why the lien was recorded when the Association’s status was suspended, internal communications, and how the disputed amounts were calculated. In his Second Amended Cross-Complaint, Defendant alleges that the lien recorded against his property is invalid and void and based on inaccurate accounting practices. Defendant further argues that disqualification is necessary because Mr. Brown and CLA are deeply entangled in Plaintiff’s collection practices. The Court finds that Defendant’s arguments that Mr. Brown is a necessary percipient witness due to his involvement in recording the lien and representing Plaintiff in collections efforts are not persuasive. Mr. Brown’s authority from Plaintiff to record the lien has no bearing on the validity of the lien or the amendment thereto that was filed while the Association was on a suspended status. Further, any “internal communications” between Plaintiff and Mr. Brown regarding his recording of the lien on Plaintiff’s behalf would undoubtedly fall within the scope of the attorney-client relationship and be protected by the attorney-client privilege. (Evid. Code, § 954.) Moreover, Mr. Brown’s testimony is not required in relation to Defendant’s allegations that the lien is based on improper accounting and the amount of the lien was miscalculated. Rather, testimony regarding how the Association calculated the amount and the Association’s accounting practices would more appropriately be obtained via the deposition of the Association’s person(s) most knowledgeable. Thus, the first factor weighs against disqualification. As to the second factor for consideration, Plaintiff points out that Defendant has known of Mr. Brown’s and CLA’s representation of the Association over a year before the Motion to Disqualify was filed. However, there is no other evidence aside from this delay to suggest that Defendant is using his Motion for purely tactical reasons. Thus, the Court finds that this factor is neutral. The last factor, however, also weighs against disqualification. Plaintiff undisputably as a strong interest in representation by counsel of its choice and trial in this matter is currently set for November 23, 2026. This matter has been pending for a year and a half. Requiring Plaintiff to obtain new counsel now would come at significant expense and require duplicative efforts for new counsel to become familiar with the case in preparation for trial. In short, the Court finds that Plaintiff would be highly prejudiced by the granting of this Motion. In light of all the above, the Motion to Disqualify is DENIED. Plaintiff to give notice.
11.	30-2025-01480831 Gutierrez vs. General Motors LLC	1. Motion for Summary Judgment and/or Adjudication Defendant General Motors, LLC (“Defendant”) moves for summary adjudication as to the first cause of action for declaratory relief, third cause of action for violation of the Song-Beverly Consumer Warranty Act express warranty, fourth cause of action for violation of the Song-Beverly Warranty Act implied warranty, fifth cause of action for violation of the Consumer Legal Remedies Act, sixth cause of action for violation of the Business and

	Professions Code, seventh cause of action for fraudulent misrepresentation, and eighth cause of action for negligent misrepresentation. Plaintiff Peter Gutierrez Jr. (“Plaintiff”) opposes the motion and requests that the hearing on the motion be continued pursuant to Code of Civil Procedure section 437c(h). Plaintiff requests a continuance of the summary judgment hearing to obtain discovery regarding the agency relationship between General Motors LLC (“GM”) and its franchise dealerships. Plaintiff claims this discovery is essential to establish facts that directly contradict GM's central assertion that no transactional relationship exists between Plaintiff and General Motors LLC. (Declaration of Colin S. Welsh (“Welsh Decl.”), ¶¶ 2-4.) The necessary discovery includes GM’s Warranty policies and procedures manuals, GM’s Policies and Procedures regarding repair and service obligations, the agreements that GM has with its dealers, and deposition testimony from GM and DeLillo Chevrolet representatives with knowledge about the agency relationship between GM and its franchise dealerships. (<i>Id.</i>) Pursuant to Code of Civil Procedure section 437c(h), the motion is CONTINUED to November 12, 2026 at 1:30pm in C34. Supplemental Opposition and Supplemental Reply briefs to be filed and served, pursuant to the law, based on the 11/12/26 hearing date. Plaintiff to give notice.
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